

25CV01334 Joseph Viens vs Ford Motor Company et al

County: santa-barbara

Division: Civil Law & Motion

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Motion: Motion: Summary Judgment

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Case Number

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Case Type

Civil Law & Motion

Hearing Date / Time

Mon, 09/21/2026 - 10:00

Nature of Proceedings

Motion: Summary Judgment

Tentative Ruling

Joseph Viens v. Ford Motor Company, et al.

Case No. 25CV01334

Hearing Date: September 21, 2026

HEARING: Defendant Ford Motor Company's Motion for Summary Judgment or, in the Alternative, Summary Adjudication

ATTORNEYS: For Plaintiff Joseph Viens: Larry Chae, Tyson Smith, Strategic Legal Practices

For Defendant Ford Motor Company: Spencer P. Hugret, Trina M. Clayton, Hailey M. Rogerson, Gordon Rees Scully Mansukhani LLP

For Defendant Perry Ford of Santa Barbara: No appearance

TENTATIVE RULING:

The unopposed motion of defendant Ford Motor Company for summary judgment is granted.

Background:

This action commenced on March 3, 2025, by the filing of the complaint by plaintiff Joseph Viens against defendants Ford Motor Company (Ford) and Perry Ford of Santa Barbara (Perry Ford) for: (1) Violation of Subdivision (d) of Civil Code section 1793.2; (2) Violation of Subdivision (b) of Civil Code section 1793.2; (3) Violation of Subdivision (a)(3) of Civil Code section 1793.2; (4) Breach of the Implied Warranty of Merchantability; (5) Negligent Repair; and (6) Fraudulent Inducement - Concealment. As relevant here, on causes of action 1-4 and 6 are alleged against Ford. Cause of action 5, for negligent repair, is alleged solely against Perry Ford.

By way of the complaint, plaintiff alleges that on September 2, 2018, he entered into a warranty contract with Ford regarding a 2018 Ford Transit which was manufactured and distributed by Ford. (Compl., ¶ 7.) The warranty included bumper to bumper warranty, powertrain warranty, emission warranty, etc. (Compl., ¶ 8.)

Defects and nonconformities to warranty manifested themselves within the applicable express warranty period, including to transmission defects, engine defects, and electrical defects, among other defects and non-conformities. (Compl., ¶ 12.)

Ford failed to either promptly replace the vehicle or to promptly make restitution in accordance with the Song-Beverly Act. (Compl., 16.)

Ford committed fraud by allowing the vehicle to be sold to plaintiff without disclosing that the vehicle and its 6-speed transmission were defective and susceptible to sudden and premature failure. (Compl., ¶ 52.)

On May 22, 2025, Ford answered the complaint with a general denial and 38 affirmative defenses.

Ford now moves for summary judgment or, in the alternative, summary adjudication arguing that causes of action one through four are barred by the applicable statute of repose and that the sixth cause of action is barred because plaintiff cannot prove the necessary elements of the claim.

Plaintiff was timely and properly served with the motion but has not filed opposition or any other response to the motion.

The court notes that Ford additionally filed and served a notice of non-opposition on September 10, 2026, which did not elicit any response from plaintiff.

Analysis:

Standard on Summary Judgment

A defendant's motion for summary judgment asks the court to determine that the entire action has no merit, and to terminate the action without the necessity of a trial. (Code Civ. Proc., § 437c, subd. (a).) The procedure enables the court to look behind the pleadings to determine whether the party against whom the motion is directed has evidence to back up the claims. The court must determine from the evidence presented that there is no triable issue as to any material fact, and that the moving party is entitled to judgment as a matter of law. (Code Civ. Proc., § 437c, subd. (c).)

"[F]rom commencement to conclusion, the party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law." (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850.) There is no obligation on the opposing party to establish anything by affidavit unless and until the moving party has by affidavit stated facts establishing every element necessary to sustain an adjudication in his favor. (Consumer Cause, Inc. v. Smilecare (2001) 91 Cal.App.4th 454, 468.) "[W]e liberally construe plaintiff's evidentiary submissions and strictly scrutinize defendant's own evidence, in order to resolve any evidentiary doubts or ambiguities in plaintiff's favor." (Johnson v. American Standard, Inc. (2008) 43 Cal.4th 56, 64.)

"A defendant . . . has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action. Once the defendant . . . has met that burden, the burden shifts to the plaintiff or cross-complainant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto." (Code Civ. Proc., § 437c, subd. (p)(2).)

In resolving the motion, the court may not weigh the evidence. (Binder v. Aetna Life Ins. Co. (1999) 75 Cal.App.4th 832, 840.) Rather, the role of the trial court in resolving a summary judgment motion is to determine whether issues of fact exist, not to decide the merits of the issues. (Molko v. Holy Spirit Assn. (1988) 46 Cal.3d 1092, 1107.) A triable issue of material fact exists only if the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof. (Aguilar v. Atlantic Richfield, supra, 25 Cal.4th at p. 850.)

Separate Statement

"Code of Civil Procedure section 437c, subdivision (b)(1), requires each motion for summary judgment to be accompanied by a separate statement " 'setting forth plainly and concisely all material facts that the moving party contends are undisputed. Each of the material facts stated shall be followed by a reference to the supporting evidence.' " California Rules of Court, rule 3.1350(d)(2)4 states: " 'The separate statement should include only material facts and not any facts that are not pertinent to the disposition of the motion.' " Under the Rules of Court, " 'Material facts' " are facts that relate to the cause of action, claim for damages, issue of duty, or affirmative defense that is the subject of the motion and that could make a difference in the disposition of the motion.' " (Rule 3.1350(a)(2).)" (Beltran v. Hard Rock Hotel Licensing, Inc. (2023) 97 Cal.App.5th 865, 874-875.)

"The point of the separate statement is not to craft a narrative, but to be a concise list of the material facts and the evidence that supports them. " 'The separate statement serves two important functions in a summary judgment proceeding: It notifies the parties which material facts are at issue, and it provides a convenient and expeditious vehicle permitting the trial court to hone in on the truly disputed facts.' " [Citation.]" (Beltran v. Hard Rock Hotel Licensing, Inc., supra, 97 Cal.App.5th at page 875.)

"The duty to comply with the law regarding separate statements applies to both sides of a motion for summary judgment or adjudication. The opposing party's responses to the separate statement must be in good faith, responsive, and material. Responses should directly address the fact stated, and if that fact is not in dispute, the opposing party must so admit. It is completely unhelpful to evade the stated fact in an attempt to create a dispute where none exists." (Beltran v. Hard Rock Hotel Licensing, Inc., supra, 97 Cal.App.5th at page 875.)

"In opposing a defendant's motion for summary judgment, the plaintiff must submit a separate statement setting forth the specific facts showing that a triable issue of material fact exists. [Citations.] Without a separate statement of undisputed facts

with references to supporting evidence in the form of affidavits or declarations, it is impossible for the plaintiff to demonstrate the existence of disputed facts.” (Lewis v. County of Sacramento (2001) 93 Cal.App.4th 107, 116; disapproved on other grounds by Kaufman & Broad Communities, Inc. v. Performance Plastering, Inc. (2005) 133 Cal.App.4th 26, 41-42.)

Ford has submitted a separate statement of undisputed material facts (SSUMF) setting forth 23 facts it contends are undisputed (UMFs) in support of its motion for summary judgment and several facts in support of its motion for summary adjudication of the individual causes of action.

The UMFs in support of summary judgment include:

Plaintiff purchased a new 2018 Ford Transit on September 2, 2018. (UMF No. 1.)

At the time of the purchase of the vehicle, the vehicle came with a new vehicle limited warranty, which includes a 12-month/12,000 mile limited warranty for tires, a three-year/36,000 mile bumper to bumper warranty, a five-year/50,000 mile emissions defect warranty, and a five-year/60,000 mile powertrain warranty. (UMF No. 2.)

The new vehicle limited warranty began to run on September 2, 2018. (UMF No. 3.)

The powertrain warranty expired on September 1, 2023. (UMF No. 4.)

Plaintiff’s complaint, filed on March 3, 2025, asserts three Song-Beverly Act causes of action alleging breaches of express warranties, one Song-Beverly Act cause of action alleging a breach of implied warranty, and an additional cause of action for fraudulent inducement-concealment. (UMF No. 5.)

Prior to filing his complaint, plaintiff did not contact Ford to demand a repurchase or replacement of the vehicle. (UMF No. 6.)

Prior to filing his complaint, plaintiff did not submit his claims to a qualified third-party dispute resolution process. (UMF No. 7.)

Ford has opted into the statutory framework established by Code of Civil Procedure section 871.20, et seq. (UMF No. 8.)

On June 6, 2022, at 38,961 miles, records indicate that the vehicle presented to a Ford authorized repair facility for performance of proactive Recall 21S24 (shifter cable bushing replacement), which was completed. (UMF No. 9.) The repair order and standard claims list reflect that the vehicle was in for this presentation for one day at most. (Ibid.)

On March 27, 2023, at 46,618 miles, the records indicate that the vehicle presented to a Ford authorized repair facility for a flat tire. (UMF No. 10.) The rim was replaced, and the vehicle was in for this presentation for one day at most. (Ibid.)

On April 27, 2023, at 47,699 miles, the records indicate that the vehicle presented to a Ford authorized repair facility for a complaint that the transmission shutters. (UMF No. 11.) The repair record reflects that the technicians attempted to diagnose the reported condition but were unable to verify or duplicate the concern during inspection and testing. (Ibid.) As a result, no warrantable defect was identified, and no repairs were performed during this visit. (Ibid.) The repair order indicates that the vehicle was in for this presentation for one day at most. (Ibid.)

On March 4, 2025, at 64,976 miles, the records indicate that the vehicle presented to a Ford authorized repair facility for a complaint that the transmission shutters. (UMF No. 12.) The repair records reflect that the technicians were able to verify the

issue and recommended replacement of the transmission. (Ibid.) However, the available repair records do not indicate that a transmission replacement was performed or that any repair work was ultimately completed during the visit, and also indicate that the vehicle was in for the presentation for two days at most. (Ibid.)

The vehicle was presented to a Ford authorized repair facility three times (May 9, 2021, March 20, 2023, and October 26, 2023) for routine maintenance. (UMF No. 13.)

The vehicle was in for service for no more than five days in total, excluding service visits related exclusively to routine maintenance. (UMF No. 14.)

[Note: The separate statement contains two UMF Nos. 14. The second UMF No. 14 will be referred to as "UMF No. 14(2)".]

On April 14, 2026, Ford propounded written discovery including special interrogatories ("SROGs") and requests for production of documents ("RFPs"), seeking all facts, witnesses, and evidence to support plaintiff's fraudulent concealment claim. (UMF No. 14(2).)

On June 19, 2026, plaintiff served his responses to the SROGs and produced 87 pages of documents in response to the RFPs. (UMF Nos. 15, 16.)

In response to the SROGs and RFPs, plaintiff did not produce any information, identify any witnesses, identify any documents, or produce any documents that would support his fraudulent inducement cause of action. (UMF Nos. 17-23.)

Ford has produced admissible evidence in support of each of the UMFs. As noted above, plaintiff has not filed any opposition or other document in response to the present motion.

Ford argues that the applicable statutes of repose bar plaintiff's first four causes of action, which are all brought under the Song-Beverly Act.

"[W]hile a statute of limitations normally sets the time within which proceedings must be commenced once a cause of action accrues, the statute of repose limits the time within which an action may be brought and is not related to accrual. Indeed, "the injury need not have occurred, much less have been discovered. Unlike an ordinary statute of limitations which begins running upon accrual of the claim, [the] period contained in a statute of repose begins when a specific event occurs, regardless of whether a cause of action has accrued or whether any injury has resulted.'" [Citation.] A statute of repose thus is harsher than a statute of limitations in that it cuts off a right of action after a specified period of time, irrespective of accrual or even notice that a legal right has been invaded. [Citation.]" (Giest v. Sequoia Ventures, Inc. (2000) 83 Cal.App.4th 300, 305.)

The Song-Beverly Act imposes the following statute of repose:

"(a) An action covered by Section 871.20 shall be commenced within one year after the expiration of the applicable express warranty.

(b) Notwithstanding subdivision (a), an action covered by Section 871.20 shall not be brought later than six years after the date of original delivery of the motor vehicle.

(c) The time periods prescribed in subdivisions (a) and (b) shall be tolled as follows:

(1) As provided by tolling requirements prescribed in subdivision (c) of Section 1793.22 of the Civil Code, as applicable.

(2) For the time the motor vehicle is out of service by reason of repair for any nonconformity.

(3) For the time period after a pre-suit notice is provided to the manufacturer in accordance with Section 871.24, which time period shall not exceed 60 days." (Code Civ. Proc., § 871.21.)

Here, as noted above, plaintiff purchased the vehicle on September 2, 2018, at which time the warranty began to run. The final relevant portion of the warranty, the powertrain warranty, expired as of September 1, 2023. Unless tolled, plaintiff was required to file suit, based on Song-Beverly claims, no later than August 31, 2024. Ford has provided admissible evidence that tolling does not apply to plaintiff's claims. The action was not filed until March 3, 2025, and the Song-Beverly claims (causes of action 1 through 4) are barred.

Ford argues that the sixth cause of action, for fraudulent inducement-concealment, fails because plaintiff has not, and cannot, produce any evidence to support his allegations that the vehicle was manufactured with a transmission defect, that Ford knew of any defect, or that Ford concealed a defect to induce plaintiff to purchase the vehicle.

"The defendant may, but need not, present evidence that conclusively negates an element of the plaintiff's cause of action. The defendant may also present evidence that the plaintiff does not possess, and cannot reasonably obtain, needed evidence-as through admissions by the plaintiff following extensive discovery to the effect that he has discovered nothing." (Aguilar v. Atlantic Richfield Co., supra, 25 Cal.4th at p. 855.)

"Concealment is a species of fraud or deceit. [Citations.] " '[T]he elements of an action for fraud and deceit based on concealment are: (1) the defendant must have concealed or suppressed a material fact, (2) the defendant must have been under a duty to disclose the fact to the plaintiff, (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff must have been unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage.' " [Citations.]" (Moncada v. West Coast Quartz Corp. (2013) 221 Cal.App.4th 768, 775.)

Ford has produced evidence that it propounded written discovery on plaintiff that sought all facts, witnesses, and documents that support plaintiff's sixth cause of action. In response, plaintiff produced no evidence that supports his sixth cause of action, and there is no argument or evidence that plaintiff will be capable of obtaining any evidence that would tend to support his sixth cause of action.

Summary judgment will be granted in favor of Ford.

Judges

Judge Colleen Sterne

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